

Kripa Shanker v. State of U.P. Thru. Distt. Collector, Unnao & Ors.

Allahabad High Court (Lucknow Bench) · Division Bench · 24 June 2025 · 2025:AHC-LKO:36177-DB · WRIT - C No. 6057 of 2025 · **Writ petition disposed of by consent (installment facility directed on partial deposit)**

HEADNOTE

Clause 6.14 of the U.P. Electricity Supply Code, 2005 provides for payment of an outstanding electricity bill in installments; a consumer (here, a marginal farmer facing recovery proceedings on an agricultural connection bill) may move an application under Clause 6.14 before the Executive Engineer, who must consider and decide it expeditiously and may permit deposit of the outstanding amount in installments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Consumer may seek payment of outstanding dues in installments under Clause 6.14

QUESTION

Can a consumer facing recovery of an outstanding bill be permitted to pay it in installments, and through what mechanism?

HOLDING

Clause 6.14 of the Code already provides for payment of outstanding dues in installments; on an application by the consumer, the Executive Engineer must consider and decide the request expeditiously. By consent, the Court directed the petitioner to deposit Rs. 15,000 and move a Clause 6.14 application, staying recovery pending decision, conditional on the deposit being made. ¶ paras 4-8

LIMITING FACTS

The petitioner, a marginal farmer, held an agricultural electricity connection and faced recovery proceedings for an unpaid bill of Rs. 78,647; he did not dispute the bill but sought installment payment owing to financial difficulty.

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer unable to pay an outstanding bill in one go may apply under Clause 6.14 of the Supply Code for installment payment; the Executive Engineer must consider and decide such an application expeditiously.

¶ paras 4-8